The areas described aggregate 335.40 acres.

T. 55 N., R. 1 W.,
Sec. 4, lot 1;
Sec. 5, lot 4;
Sec. 7, lots 1 and 2; Sec. 8, lots 1 and 2, except Crescent (M. S. 2039) and St. Reca (M. S. 2960) Lode Mining Claims, that portion of Exchange Survey No. 820 which involves lot 2 of sec. 8, and except that portion of Mexico Lode Mining Claim (M. S. 2559) lying north from Tract "A" of Exchange Survey No. 821;
Sec. 13, lots 1 and 2;
Sec. 14, lot 1;
Sec. 18, lots 1, 2, 3, and 4, except the overlapping part of the Crescent Lode Mining Claim (M. S. 2039);
Sec. 19, lot 1;
Sec. 23, lots 2, 3, and 4;
Sec. 26, lots 1, 2, 4, and 5, except Park Quartz and Protection Lode Mining Claims (M. S. 2665);
Sec. 34, lots 3 and 5;
Sec. 35, lots 1 and 7.

The areas described aggregate 773.18 acres.

T. 56 N., R. 1 W.,
Sec. 22, lot 4, except the Bay City Mining Claim (M. S. 2354);
Sec. 26, lots 1, 2, 3, and 4;
Sec. 27, lot 3;
Sec. 28, lots 1 and 2, except a portion of Homestead Entry Survey No. 514;
Sec. 33, lots 1, 2, 3, 4, and 5.

The areas described aggregate 576.79 acres.

T. 53 N., R. 2 W.,
Sec. 10, lots 3, 6, 7, and 8;
Sec. 11, (unsurveyed), all lands within ¼ mile of Pend Oreille Lake;
Sec. 12, (unsurveyed), all lands within ¼ mile of Pend Oreille Lake.

The areas described aggregate 500 acres.

T. 54 N., R. 2 W.,
Sec. 2, lots 1, 3, 4, and 5;
Sec. 14, lots 1, 2, 3, and 4;
Sec. 24, lots 1, 2, 3, and 4.

The areas described aggregate 474.35 acres.

T. 55 N., R. 2 W.,
Sec. 24, lots 1, 2, 3, 4, 5, and SW¼SW¼;
Sec. 25, lots 1 and 2;
Sec. 26, lots 1, 2, and 3;
Sec. 35, lots 1, 2, 3, and 4.

The areas described aggregate 456.38 acres.

T. 56 N., R. 4 W.,
Sec. 34, lots 3 and 4.

The areas described aggregate 60 acres.

The areas described aggregate approximately 5,140 acres, of which all except 231.90 acres is located in the Kaniksu National Forest.

2. The jurisdiction of the Department of the Army, Corps of Engineers, over the lands shall be limited to the use thereof for flowage purposes in connection with the Albeni Falls Dam. The lands shall otherwise continue to be managed by the Bureau of Land Management, Department of the Interior, and the Forest Service, Department of Agriculture, as their interests may appear.

ROGER ERNST,
Assistant Secretary of the Interior.

AUGUST 4, 1958.

[F. R. Doc. 58-6352; Filed, Aug. 8, 1958; 8:45 a. m.]

[Public Land Order 1704]

[1773280]

NORTH DAKOTA

REVOKING EXECUTIVE ORDERS NOS. 8123, 8126, 8129, AND 8163, WHICH ESTABLISHED CERTAIN MIGRATORY WATERFOWL REFUGES

By virtue of the authority vested in the President and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

Executive Orders No. 8123 of May 10, 1939, No. 8126 of May 10, 1939, No. 8129 of May 10, 1939, and No. 8163 of June 12, 1939, which reserved all lands owned or controlled by the United States within the following-described areas in North Dakota for use of the Department of Agriculture as refuges and breeding grounds for migratory birds and other wildlife, are hereby revoked:

EXECUTIVE ORDER NO. 8123

FIFTH PRINCIPAL MERIDIAN

Lake Moraine

T. 143 N., R. 78 W.,
Sec. 13, N½.

The area described contains 320 acres.

EXECUTIVE ORDER NO. 8126

FIFTH PRINCIPAL MERIDIAN

Little Lake

T. 136 N., R. 76 W.,
Sec. 33, E½;
Sec. 34, SW¼.

The areas described aggregate 480 acres.

EXECUTIVE ORDER NO. 8129

FIFTH PRINCIPAL MERIDIAN

Minnewastena

T. 152 N., R. 65 W.,
Sec. 12, lot 7 and SW¼SE¼;
Sec. 13, lot 1 and NW¼NE¼.

The areas described aggregate 144.30 acres.

EXECUTIVE ORDER NO. 8163

FIFTH PRINCIPAL MERIDIAN

Pioneer Lake

T. 155 N., R. 58 W.,
Sec. 21.

The area described contains 640 acres. The lands are non-public lands.

ROGER ERNST,
Assistant Secretary of the Interior.

AUGUST 5, 1958.

[F. R. Doc. 58-6353; Filed, Aug. 8, 1958; 8:45 a. m.]

[Public Land Order 1705]

[78282]

CALIFORNIA

POWER SITE RESTORATION NO. 540 PARTLY REVOKING POWER SITE RESERVES NOS. 293, 696, AND 701

By virtue of the authority vested in the President by section 1 of the act of June 25, 1910 (36 Stat. 847; 43 U. S. C. 141), and pursuant to Executive Order No. 10355 of May 26, 1952, it is ordered as follows:

The Executive orders of October 18, 1912, October 15, 1918, and December 2, 1918 creating Power Site Reserves Nos. 293, 696, and 701, respectively, are hereby revoked so far as they affect the following-described lands:

MOUNT DIABLO MERIDIAN

T. 10 S., R. 33 E.,
Sec. 1, lots 3 and 4, SE¼NW¼, E½SW¼;
Sec. 12, E½NW¼, NE¼SW¼, W½SE¼;
Sec. 13, W½NE¼, S½NW¼, S½;
Secs. 24 and 25.
T. 10 S., R. 34 E.,
Sec. 18, S½ of lots 1 and 2 of SW¼;
Sec. 19, lots 1 and 2 of NW¼, N½NE¼, SW¼NE¼;
Sec. 20, N½;
Sec. 30, S½ of lots 1 and 2 of NW¼, N½ of lots 1 and 2 of SW¼, NW¼SE¼.

The areas described aggregate 3,125.30 acres.

2. In DA-934-California issued January 27, 1958, the Federal Power Commission vacated the Federal Power Project No. 134 (for transmission line purposes) so far as the project affects the lands described in this order.

3. The public lands in the areas described in this order were withdrawn by the act of April 6, 1931 (46 Stat. 1530), for protection of the water supply of the City of Los Angeles.

ROGER ERNST,
Assistant Secretary of the Interior.

AUGUST 5, 1958.

[F. R. Doc. 58-6354; Filed, Aug. 8, 1958; 8:45 a. m.]

TITLE 47—TELECOMMUNICATION

Chapter I—Federal Communications Commission

[Rules Amdt. 1-5]

[Docket No. 12461; FCC 58-777]

PART 1—PRACTICE AND PROCEDURE

APPLICATIONS

At a session of the Federal Communications Commission held at its offices in Washington, D. C., on the 30th day of July 1958;

The Commission having under consideration a proposal to change its policy with respect to the Revised Tentative Allocation Plan for Class B FM Broadcast Stations (to abandon the plan) and to amend §§ 1.356 (f) and 1.309 (a) of the rules;

It appearing that notice of proposed rule making (FCC 58-514) setting forth the above proposal was issued by the Commission on June 2, 1958, and was duly published in the FEDERAL REGISTER (23 F. R. 3937), which notice provided that interested parties might file statements or briefs with respect to the said proposal on or before July 7, 1958; and

It further appearing that comments were filed in this matter by the Charles River Broadcasting Company, Waltham, Massachusetts, licensee of Station WCRB-FM; Everett L. Dillard, trading as The Commercial Radio Equipment Company, Washington, D. C.; and the Interstate Broadcasting Company, Inc., New York City, licensee of Station

WQXR–FM; all of which comments were in favor of the Commission's proposal; that, in addition, The Commercial Radio Equipment Company and the Interstate Broadcasting Company, Inc. suggested the revision of §§ 3.202 and 3.204 to remove the present limitation of the coverage of Class B FM stations located in the heavy populated part of New England, the southeastern portion of New York, New Jersey, Delaware, and the eastern portions of Pennsylvania and Maryland, to not more than the equivalent of 20 kilowatts effective radiated power and antenna height of 500 feet above average terrain; but that these suggestions to amend §§ 3.202 and 3.204, more properly, should be the subject of a separate rule making proceeding; and

It further appearing that no comments in reply to the original comments were filed within the 10-day period after July 7, 1958; and

It further appearing that adoption of the proposal can be expected to expedite the processing of applications for FM facilities; and

It further appearing that authority for the adoption of the proposed amendments is contained in sections 4 (i), 301, 303 (c), (d), (f), and (r), and 307 (b) of the Communications Act of 1934, as amended;

It is ordered, That effective August 20, 1958, the Revised Tentative Allocation Plan for Class B FM Broadcast Stations is abandoned and §§ 1.356 (f) and 1.309 (a) are amended by deleting the present provisions of these two sections and substituting the following:

§ 1.356 *Processing of FM and noncommercial educational FM broadcast applications.* * * *

(f) If, upon examination, the Commission finds that the public interest, convenience and necessity will be served by the granting of an application for FM broadcast facilities (Class A, Class B or noncommercial educational), the same will be granted. If, on the other hand, the Commission is unable to make such a finding and it appears that a hearing may be required, the procedure set forth in § 1.362 will be followed.

§ 1.309 *Repetitious applications.* (a) Where the Commission has denied an application for a new station or for any modification of services or facilities, or dismissed such application with prejudice, no like application involving service of the same kind to substantially the same area by substantially the same applicant, or his successor or assignee, or on behalf or for the benefit of the original parties in interest, may be filed within 12 months from the effective date of the Commission's action: *Provided, however*, That applicants whose applications have been denied in a comparative hearing for a particular television facility allocated in the television allocation table, may immediately reapply for another available television channel.

(Sec. 4, 48 Stat. 1066, as amended; 47 U. S. C. 154. Interpret or apply secs. 301, 303, 307, 48 Stat. 1081, 1082, 1083; 47 U. S. C. 301, 303, 307)

Released: August 5, 1958.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] GORDON J. KENT,
Acting Secretary.

[F. R. Doc. 58-6382; Filed, Aug. 8, 1958; 8:47 a. m.]

[Docket No. 12404; FCC 58-750]

[Rules Amdt. 2-24, 9-20]

PART 2—FREQUENCY ALLOCATIONS AND RADIO TREATY MATTERS; GENERAL RULES AND REGULATIONS

PART 9—AVIATION SERVICES

MISCELLANEOUS AMENDMENTS

1. On April 16, 1958, the Commission adopted a notice of proposed rule making in the above entitled matter which was released on April 18, 1958, and published in the FEDERAL REGISTER on April 23, 1958 (23 F. R. 2698). An errata correcting certain minor errors and omissions in the notice was released on May 1, 1958, and published in the FEDERAL REGISTER on May 6, 1958 (23 F. R. 3022).

2. The period for filing comments in this matter expired on July 16, 1958. No comments were timely received with respect to the Commission's proposal to reallocate the band 13,250–13,400 Mc for exclusive use of airborne radionavigation devices employing the doppler technique by both Government and non-Government stations.[1] This band is presently allocated for exclusive Government use and no existing non-Government station will be adversely affected by such a reallocation. The Commission has now decided to implement this portion of its proposed rule making in this matter by appropriate amendment to Part 2 of the rules, as shown in the attached Appendx, in order that the non-Government aeronautical radionavigation service may benefit therefrom as soon as possible.

3. Purely as a consequence of this action, Part 9 is also being amended to reflect in this portion of the rules the availability of these frequencies to stations in the aeronautical radionavigation service for airborne doppler radar use. Since the only purpose and effect of this amendment is to achieve consistency in the rules, the Commission finds that notice and public procedure under section 4 of the Administrative Procedure Act are unnecessary.

4. The remaining proposals in Docket 12404 will be dealt with at a later date.

5. In view of the foregoing: *It is ordered*, pursuant to the authority of section 303 (c), (f) and (r) of the Communications Act of 1934, as amended, that effective September 2, 1958, Part 2 of the Commission's rules, Frequency Allocations and Radio Treaty Matters; General Rules and Regulations, and Part 9—Aviation Services, are amended as set forth below.

(Sec. 4, 48 Stat. 1066, as amended; 47 U. S. C. 154. Interprets or applies sec. 303, 48 Stat. 1082, as amended; 47 U. S. C. 303)

Adopted: July 30, 1958.

Released: July 31, 1958.

FEDERAL COMMUNICATIONS COMMISSION,
[SEAL] GORDON J. KENT,
Acting Secretary.

1. In the table of frequency allocations in § 2.104 (a) (5), change the entries in the band 13250–16000 Mc in columns 5 through 11 to read as follows:

Band Mc	Allocation	Band Mc	Service	Class of station	Frequency	Nature (OF SERVICES (of stations
5	6	7	8	9	10	11
13250–13400	G,NG	13250–13400	Aeronautical radionavigation.	Radionavigation mobile.	.....	Airborne doppler radar.
13400–16000	G					

2. Amend Part 9—Aviation Services as indicated below:

Add a new paragraph (q) to § 9.312 to read as follows:

(q) 13250–13400 Mc: This band is available for airborne doppler radar use.

[F. R. Doc. 58-6383; Filed, Aug. 8, 1958; 8:47 a. m.]

[1] Subsequent to the final filing date, comments supporting the action here taken were received from Raytheon Manufacturing Co. and Ryan Aeronautical Co. Reply comments filed on July 28, 1958, by Aeronautical Radio also give qualified support to the action.

[Rules Amdt. 2-25]

[Docket No. 11959; FCC 58-799]

PART 2—FREQUENCY ALLOCATIONS AND RADIO TREATY MATTERS; GENERAL RULES AND REGULATIONS

1. On April 3, 1957, the Commission adopted a notice of proposed rule making in the above entitled matter which was released on April 9, 1957, and published in the FEDERAL REGISTER of April 16, 1957 (22 F. R. 2583). A correction to the Notice adding footnote designators to certain specified frequency bands was released on April 11, 1957, and pub-